

Lawless Law Guardians

In most states, a family court dealing with an allegation of child abuse will appoint a legal representative for the child or children. These representatives are variously named in different jurisdictions: “law guardian” and “guardian ad litem” are the two most common.¹ Even though the policy of appointing such “law guardians” is relatively modern, it is now overwhelmingly popular in family courts: Lidman and Hollingsworth (1998) state that more than eleven hundred guardians are appointed weekly, in custody cases alone, throughout the United States.² In theory, these representatives are appointed by family courts to ensure that the welfare of the children is not forgotten in a case involving a charge of child abuse—that is, in a situation in which the adversarial posture of the parents makes it difficult for their lawyers to put the children’s interests ahead of their own clients’ interests. Unfortunately, however, this benign theory is not always honored in practice. In the real world of family court, law guardians operate under very few controls and consequently are free to follow the unwritten rules of a system that, as we have seen, has its own topsy-turvy priorities.

What happens when law guardians disregard the law? In the previous chapter, we analyzed how family court judges can sacrifice objectivity when they feel their authority threatened by a protective mother. Here we examine a related problem. Since law guardians theoretically speak for the children, they are in a uniquely powerful position to cripple an accusation of child abuse, simply by refusing to credit it. And by the

same token, they can quickly become the objects of outrage and parental mutiny when protective mothers believe they are failing to observe their legal duties to protect the children.

Law guardians reflect the priorities and attitudes of the system of which they are a part. Just as family court judges may scrutinize a parent accusing the other of child abuse more closely than the abuse allegation itself, law guardians may expend the better part of their professional energies dogging the steps of parents they suspect will take the law into their own hands. And just as the judicial system can ignore procedural rules and safeguards while it pursues a protective parent, law guardians may also behave like outlaws.

In the cases we have studied, law guardians have committed acts including lying to the family court and to higher courts; suppressing evidence of sexual abuse; and communicating false or incomplete information to state prosecutors and child protective service caseworkers who were trying to investigate claims of sexual abuse.

The particulars of these cases will be discussed below. But first, we should introduce some of the criticism that has already been leveled at “lawless” law guardians by child protection advocates and others.

THE ROLE OF LAW GUARDIAN COMES UNDER ATTACK

In the past two decades—that is, during the precise period that law guardians have become fixtures in abuse-related family court litigation—law guardians have also attracted sharpening debate.

One of the earliest critiques of the roles and responsibilities of law guardians appeared in a 1990 treatise on the protective mother problem published by the National Center on Women and Family Law.³ In *Legal Issues and Legal Options in Civil Child Sexual Abuse Cases: Representing the Protective Parent*, attorneys H. Joan Pennington and Laurie Woods cautioned that “the role of the Guardian Ad Litem, his/her quali-

fications, rights and duties, and accountability vary from jurisdiction to jurisdiction. Generally, there are no standards, no certification, no requirement of neutrality, and no guarantee that it is the child's interests being represented" (p. 16).

The concerns of Pennington and Woods were not misplaced. In the years since they wrote their treatise, task forces and state legislative committees that have investigated the performance of law guardians have expressed serious reservations. In 2001, the Massachusetts Senate Committee on Post Audit and Oversight, for example, found "system-wide deficiencies in guidelines, standards, training, role definition, accountability, and investigations."⁴

The harshest words have come from an attorney with extensive first-hand contact with law guardians in family court cases. In the *Loyola Journal of Public Interest Law* (2002), Louisiana activist attorney Richard Ducote, who has specialized almost exclusively in protective mother litigation for nearly two decades, actually called for the abolition of law guardians in child custody litigation.⁵ Against the theory behind law guardian appointments—that a "neutral" representative can best represent a child's interests while the parents are at loggerheads in litigation—Ducote maintains that "nature has . . . arranged it so that most parents do, in fact, have more invested in the child's welfare than the guardian ad litem du jour," and therefore "it is certainly reasonable to conclude . . . that after two decades of experience and experimentation . . . the GAL's [guardian ad litem's] place in custody cases should be extinguished" (pp. 117, 119).

Ducote supports this position by calling law guardian "neutrality" an "illusion," a dangerous illusion that "invites private dialog between the judge and the attorney" (on the theory that the law guardian is not an advocate for either parent), when in fact "the attorney-guardian ad litem is, in many instances, merely another voice, representing another interested party" (p. 145).

All too often, Ducote argues, the “interested party” to whom the law guardian gives their unstinting, unconditional advocacy is the father, who is already implicitly favored by the judge. The law guardian, acting as a mouthpiece for the judge’s preconceived position, then provides further “support” for the judge’s prejudice, since the law guardian enjoys the presumption of “a level of competence, validity, wisdom, credibility, and objectivity richly undeserved” (p. 119).

Ducote also documents the damage done by biased law guardians: “Children are frequently ending up in the custody of the abusers and separated from their protecting parents,” a tragedy that “does not happen in spite of GALs, but rather because of the GALs” (pp. 135–136).

Ducote discusses several cases in which law guardians, “without any authority to do so, want to determine acceptable playmates for the child, insist on screening letters and gifts to the child, and unilaterally alter court ordered visitation schedules” (p. 143). Even worse, Ducote points to a pattern of cover-ups resulting from the unmonitored role of law guardians: “Some GALs insist that children discuss important issues only with them, to the exclusion of the custodial parent, and seek to conceal evidence of abuse from the court under their questionable authority to invoke testimonial privileges on behalf of the child” (p. 143, n. 167).

Ducote argues that cover-ups can reach the point that the

GAL fights to keep a child in the custody of a parent previously endorsed and exonerated by the GAL, despite mounting proof that the parent is indeed abusive and the GAL erred, often through gross negligence, in the first recommendation. In such instances, GALs have forcefully opposed the introduction of new abuse evidence and instead have increased the blame on the non abusive parent. In this way, the GAL hopes to avoid any judicial finding that suggests his or her incompetence and jeopardizes future lucrative GAL appointments. (p. 146)

In this article—and in conversations with us—Ducote stresses that law guardians can threaten the welfare of innocent children so easily because they, like judges, enjoy virtually absolute legal immunity from the consequences of their official acts (p. 148). Indeed, we are not aware of any mothers who have received money damages after suing their children's law guardians; at most, a few mothers around the country have been successful in getting the law guardian off their cases. Most painful of all, even those mothers have been helpless to change custody or visitation orders issued at the instigation of the hostile law guardians.

Ducote's call for the abolition of law guardians remains a marginal position, in part because federal law, namely the Child Abuse Prevention and Treatment Act of 1974 (CAPTA),⁶ which provides much-needed federal funding to state child protective services agencies, specifically calls for the appointment of law guardians in custody cases that entail charges of child abuse or neglect. In addition, as previously noted, many states require the automatic appointment of a law guardian in any custody case—whether or not allegations of abuse or neglect have been made. But Ducote is not alone in his concern about the gap between the high hopes lavished on law guardians and their actual performance.

For example, Ducote points to a 1995 report on the guardian ad litem program from the Minnesota Office of the Legislative Auditor, Program Evaluation Division, which noted considerable confusion about just what a law guardian was supposed to do once appointed:

Judges differ in how they use guardians ad litem. In some cases, guardians simply gather information and present recommendations to the court. In other cases, guardians may act as custody evaluators, or visitation expeditors. Judges, court administrators, and guardians do not always agree on what constitutes the guardians' responsibilities. Judges also differ in their expectations of guardians for communicating and reporting. People told us the multiplicity of the guardian roles

can be confusing, especially to parents who may not always understand why guardians are appointed. (pp. 112–113)

Ducote notes that the findings of the Minnesota report “were consistent with the experiences in other states” (p. 112).

Lidman and Hollingsworth (1998) have argued that “the faulty role definition” for law guardians paves the way for overreaching:

Some individuals thrive in being in a position of power over others. A guardian ad litem can insert herself into a family to structure the interactions among the family members, without having any historic, emotional, financial or physical commitments and responsibility for the consequences. Without the controls and limits which are inherent in the judicial system and which constrain judges, the guardian ad litem, with or without admirable motives is not accountable.⁷

Law guardian “controls” are particularly weak because in most states, although the guardians are practicing attorneys, it is only the judges who appoint them—not the grievance committees of the local bar associations—who generally hear complaints about a law guardian’s behavior. As a practical matter, this sort of “supervision” does little good in cases in which the law guardian’s bias corresponds to the judge’s own attitude.⁸ For instance—in a case that will be discussed in greater detail—when a Long Island, New York, mother filed a grievance against her sons’ law guardian for misleading an appellate court about medical findings indicative of sexual abuse, the local bar association to which she sent her complaint referred it right back to the judge who had appointed this law guardian in the first place. The bar association claimed that the judge was the only authority who could monitor the law guardian’s conduct, even assuming the law guardian had misled a panel of judges of an appellate court.

LIES AND COVER-UPS

Perhaps because law guardians are among the most critical auxiliaries of the family court system, they are also among the key instruments of family court madness.

In the most extreme cases, law guardians have engaged in schemes involving the concealment of evidence and courtroom dishonesty. In other cases, law guardians have botched their cases by focusing their suspicions entirely on protective mothers and ignoring all evidence that their children may have been sexually abused.

Sociologists have examined how law enforcement officials sometimes alter “facts” in a courtroom setting in order to fit them to the system in which they operate. Albert J. Meehan’s 1997 study of police record-keeping practices (referred to in Chapter 3) argues that to prove “guilt” in a court of law, police often resort to a “transformation of what happened into ‘facts’ that will appear to conform with proper legal procedure . . . [which may include] . . . a set of ‘facts’ that are lies” (p. 189).

Among Meehan’s examples is a police report that describes youths at the scene of a crime as “screaming and yelling” and “breaking a window,” even though they did not do this; these fabricated events were presented just to make a case of “guilt” to a judge. Meehan pointed out that the arresting officers strongly suspected the youths, who had a history of drug offenses, but were frustrated by the lack of evidence needed to ensure a conviction. For that reason, the “events as they unfolded . . . [were] clearly altered to create the elements of what the law defines as an offense” (p. 189).

Meehan described the alteration of the “facts” in police reports as the *situated accomplishment* of the arresting officers, who produced their records for what ethnomethodologists identify as “contractual” uses—to serve as a “contract between the organization and the person served.” That is, when police records are produced for an “outside” source—

a court, for instance—they are carefully constructed around the “outside” source’s priorities, even if this means changing the facts (pp. 186–189).

In a similar way, some law guardians produce “records” (both oral and written) in which facts are carefully selected, and sometimes even fabricated, to fit the needs—and often the prejudices—of the family court system. For instance, in courts in which protective mothers are expected to violate orders they disagree with, to evade the court’s jurisdiction and so forth—in short, to cause trouble for family court judges—the law guardians often focus their attention on a mother’s predisposition to acts of “mutiny” against the court. And if this means ignoring, or even suppressing, evidence that supports the mother’s suspicion of child abuse, so be it.

A Vermont mother had two sons, whose disclosures of sexual abuse by the mother’s ex-husband were supported by substantial evidence (see Chapter 4). But the law guardian appointed by a Connecticut judge (after the father, in Connecticut, got a Connecticut court to take jurisdiction of the case) refused to consider any of this evidence, while repeatedly encouraging an all-too-willing judge to treat the mother as a lawbreaker.

The law guardian was the judge’s former law secretary, and before she had been on the case for a month she had already absorbed the judge’s attitude toward the litigants. At a hearing held before the law guardian had even met either child, the judge stated (without any basis in evidence) that the mother had “lied to the court, apparently she’s lied to her attorney who withdrew from the case. And this court has no confidence in her as a credible person.” The judge also claimed that the mother’s actions, and her accusations against her ex-husband, were “outrageous” and compared her behavior to that of “Bonnie and Clyde.”¹⁰

The law guardian viewed the case through the same one-colored lens. Although in theory she was duty-bound to represent the children’s interests, she remained deaf to all evidence that the father was abusing

them. And the evidence was substantial: in Vermont, where the mother and her children lived, a district director of the Department of Social and Rehabilitative Services wrote that the mother had “acted appropriately to protect her sons from further harm”;¹¹ and a doctor wrote to the law guardian describing the young boys as “hyper-sexualized,” reporting that one of them—four and a half years old—was talking about suicide and bluntly concluding that both boys “desperately need ongoing psychotherapy to get them through this stage of sexual child abuse.”¹² The law guardian ignored all this.

Indeed, she more than ignored it. She actually urged the judge to move the two boys *into the physical custody of the man accused of repeatedly abusing them*. Her only stated reason was that the mother had not brought one of the boys to school—but he was under five years old and not legally required to attend.¹³ Obliging the law guardian’s preferences (which were evidently his own as well), the judge first had the boys placed with the father’s sister (who was also accused of abusing the children and adamantly denied all charges against her brother) and later did in fact place both children in the father’s custody.

This approach to representing allegedly abused children was not one eccentric act on the law guardian’s part. As long as she remained active in the case (several years), the law guardian behaved as though her real client were the man accused of abusing the boys she represented. In November 1996, the mother appeared before another Connecticut judge with a signed statement from the children’s doctor stating that the children were in “imminent danger” of further sexual abuse from the father and his sister. The doctor also warned that one of the children was suicidal and might kill himself at any time if the boys were not removed from the father’s custody. The mother even brought affidavits from police officers and social workers who believed that the father had sodomized the boys; she implored the judge to grant an emergency motion removing the boys from the father’s custody, repeating that their doctor considered them “in imminent danger of sexual abuse or death.”

The law guardian coolly asked the judge to ignore the mother's pleas because the mother "is to notify me in advance before going to court for any additional orders [and] that has not occurred." The mother denied having seen any order requiring such advance notice, and so—at the law guardian's insistence—the judge refused to listen to anything the mother had to say until a copy of the order requiring advance notice to the law guardian was located in the court's case file, copied, and ceremoniously handed to the mother.

By that time, hours had passed since the mother had come to court. Hoping that the law guardian's procedural sensibilities had now been satisfied, the mother tried again to make her emergency request on the children's behalf, only to be brushed aside once again by the children's legal representative:

MOTHER: I have personal knowledge that there are criminal proceedings being taken by the State of Connecticut, criminal investigation. . I have witnesses and—

JUDGE (INTERRUPTS): Are you prepared, [law guardian]?

L.G.: Absolutely not, Your Honor.

MOTHER: I have exhibits—

JUDGE: Excuse me, ma'am. The tape recorder can only pick up one of us talking at a time. . . Yes, [law guardian]?

L.G.: Your Honor, I am not prepared. I just happen to be in the courtroom today. There are other motions in this matter scheduled for which [the mother] has been served. I think [she] could file appropriate other orders . . I would request that there not be any testimony today and that any additional proceedings be sealed and I will submit a petition to the court concerning that.

The mother watched, speechless, as the judge turned to the father's attorney and asked him, too, if he was ready to proceed. He said he was

not. That the father's attorney wanted a delay before facing evidence of his client's alleged abuse was no surprise. But the *children's* attorney, confronted with a physician's letter stating that both children were in imminent peril, did not even want the court to consider the matter! Moreover, she was requesting that further proceedings be "sealed" so that any future accusations against the father, from any source, could be kept secret.¹⁴

The desperate mother tried once more. Once again, the law guardian was indifferent to any evidence that her two small clients were in imminent danger. She only reacted—and then with sudden fury—when the mother raised a new concern about the father:

MOTHER: Your Honor, I have a statement that my children are in immediate danger of sexual abuse or death as we speak. . I have no time to wait. My children—

JUDGE: I am not going to hear it today, ma'am. Do you want a date—

MOTHER: Could you please place them in a neutral zone so that I don't—

JUDGE: I am not going to enter any orders until after I have a hearing and I am not going to have a hearing today. If you want a hearing you can go see Mr. Goetz who assigns hearings for me.

MOTHER: All right. . They are declared in imminent danger—

JUDGE: Ma'am, I heard that.

MOTHER: I know, but I have information from the State of New York that [the father]—

JUDGE: You've told me that several times.

MOTHER: No, I have not, Your Honor. . I just want on the record that [the father] has been put on New York as an alleged perpetrator of children. .

L.G.: Your Honor, this is slanderous! This is perjury and it's slanderous!
[In fact, the mother's statement was perfectly true, although New York ultimately dismissed proceedings against the father for lack of personal jurisdiction.]

FATHER'S LAWYER: Your Honor, can I have that stricken from the record?

MOTHER: No, it's real!

JUDGE: We're through.

L.G.: Thank you, Your Honor.¹⁵

Thus, the law guardian—whose job was to advocate for her young clients' interests and to protect their welfare—seemed interested only in defending the man accused of abusing them, even when a doctor said they might be abused again, or die, at any moment.

A law guardian appointed in a Maryland divorce showed similar priorities—and a willingness to bend both procedural rules and the facts of the case in order to aid a father accused of abusing the law guardian's clients.

The divorcing couple had two small boys. Six months after the couple separated, abuse allegations against the father were reported to authorities. The Maryland court appointed a "guardian ad litem" to represent the children and ordered joint temporary custody pending trial, with the boys to spend roughly equal periods of time with each parent.

The GAL had taken no action at all in response to the abuse allegations against the father. However, less than two months after the parties agreed to yet another temporary custody order, the GAL filed an "emergency" motion against the mother, claiming she presented "a very real risk of flight with the children" and urging the court to restrict her to supervised visits with her children. An emergency hearing was held that same day, but the Maryland court refused to alter the physical custody arrangement and refused to order supervision of the mother's contacts with the children.¹⁶

However, the GAL refused to take no for an answer. Having failed to persuade the Maryland judge to strip the mother of custody, he crossed the border into the District of Columbia (where the father lived) and urged Child Protective Services (CPS) officials there to charge the mother with child abuse on the theory that she was mentally ill—the “proof” being that she believed her children had been abused. (As we have seen, CPS officials are all too willing to treat a child abuse accusation backed by a mother as an act of child abuse *committed* by the mother.) A few days later, DC officials did exactly that: they claimed that the mother was mentally ill, removed both children from her custody, and allowed her to see the children only under supervision at weekly intervals.¹⁷

Was the mother mentally ill? As the GAL surely knew, the psychologist appointed by the Maryland court to evaluate the parents had reported that “there was no evidence of any pathology on the MCMI [personality test]” he administered to the mother and no evidence of a “conduct disorder” in any of the tests.¹⁸ Another psychologist who examined the mother found no evidence of mental illness or personality disorder of any kind, and wrote a report to that effect. A therapist who reported to the Maryland court had documented that the children reported to her, spontaneously during therapy, that their father had kicked one of the boys in the crotch, tickled his private parts, thrown grass in his face (he was allergic to grass), withheld food from him, ridiculed his artwork, and threatened to kill him and his mother by setting fire to their house.¹⁹ It is, therefore, hard to believe that the GAL reported in good faith to DC authorities that the mother was mentally ill and was making “false” allegations of abuse.

Indeed, the most extraordinary thing about the GAL’s action is that he appears to have actually *misstated* the facts of the case to DC caseworkers in order to turn their agency against the mother. A DC caseworker’s memo states that the GAL informed her that an expert evaluator had already found that “sex abuse [by the father] was highly unlikely” and “believe[d] the children are making these allegations to relieve the stress

of the mother.”²⁰ The evaluator had not made either statement in his extensive testimony; what is more, in a report, he had stated clearly that he did not find the children were being coached by their mother to make their reports of abuse.²¹ According to the same DC caseworker’s memo, the GAL also gravely understated the court-appointed psychologist’s diagnosis of the father: he claimed that the psychologist had found him “a little passive-aggressive”²² when the psychologist had actually found the father suffered from “a moderately severe mental disorder.”²³ If the caseworker’s memo is accurate, the GAL—who had already failed in one attempt to take the children away from their mother—simply lied to DC authorities to make sure his second attempt was successful. And he did so, remember, in an effort to support the father accused of molesting *his own young clients*.²⁴

These startling actions on the part of a lawyer supposedly representing two small children who might have been abused show how law guardians in family courts, like police in some criminal cases, can make false statements in a father’s defense for the “contractual” purpose of getting the court to remove children from a protective mother’s custody. In layman’s terms, they have made up their minds from the start that a mother’s accusation of sex abuse must be stopped—so the facts of the case are merely the malleable instruments to be turned to that end. What makes the phenomenon so insidious in family courts is that law guardians, unlike police officers, *are presumed to represent the best interests of the children they place at risk*.

A Brooklyn, New York, family court case featured a law guardian whose interests were so close to those of the father—who was credibly accused of child sexual abuse—that he actively denounced the mother for reporting her suspicions to law enforcement officials and then misled district attorney officials to prevent a prosecution.

The law guardian’s priorities²⁵ were evident almost immediately, when—without even having met his six-year-old client—he supported the removal of the child from her mother’s home and her placement in fos-

ter care, even though the mother was not even suspected of causing or threatening harm to the child. (It was her *father*, who did not live with her, whom the girl had accused of sexually abusing her.) The law guardian then claimed that the mother was “mentally ill” and aggressively supported the father’s demand for custody, despite the girl’s abuse accusations against him. The law guardian even claimed that the mother’s belief in the child’s abuse reports against the father constituted child “neglect” in itself. In fact, when a psychiatrist appointed by the law guardian found that the mother showed no sign of mental illness, and suggested that the girl should be returned to “the only home she has ever known,” the law guardian attempted to prevent the psychiatrist’s report from reaching the court record.²⁶

The law guardian was prepared to go even further. Immediately after the trial—in which the mother had ended up being accused for having made a “false” accusation—an official from the law guardian’s own agency admitted, within earshot of the mother’s lawyer, that an incident of alleged sex abuse by the father had in fact occurred. The act of abuse had been witnessed by the girl’s grandmother, and confirmed by the girl herself, but had been dismissed by the law guardian throughout the trial as sheer fabrication. Now an official of the law guardian’s own agency admitted that the father *had* held the child on his pelvis as he lay on the floor outside the bathroom, and had gyrated under her. Furthermore, when separated, both father and girl were “wet.” The only questions, the official said, were whether the father had acted for sexual gratification and whether the liquid on them was the father’s semen or the girl’s urine. In other words, the girl’s lawyer had knowingly denied the truth about an abuse accusation made by his own client—the child.²⁷

Ironically, the law guardian—who acted as though his job were to prosecute the mother—was incensed when the mother tried to take her case to actual prosecutors. When he learned that the mother had contacted the district attorney (DA) in New York’s Ulster County (where the alleged sex abuse took place, although the case was litigated in Brooklyn

Family Court), the law guardian reportedly called the district attorney's office to state, falsely, that the child had recanted her charges.²⁸ He also sent the DA a psychological report that was critical of the mother, but failed to send the more favorable report *that had been requested and obtained by his own agency*. He also fulminated to the mother's lawyer, who told her that her effort to have the father prosecuted "was going to hurt [her] bad . . . real bad" in the family court proceedings.

In an Idaho case in the early 1990s, the court-appointed law guardian, just days after his appointment and *without even having consulted his clients*,²⁹ recommended that two small boys be removed from their divorced mother's home and placed in foster care, after one of the boys—and an older sister—reported that the father had sexually abused them. In the face of a pediatrician's testimony supporting the boy's report, the law guardian told the judge that the "parties" (read: the *mother*) needed to be taught a lesson for having passed on the boy's charges to the court: "I think if we do that [remove the young boys from their mother's home] that maybe we'll impress upon both parties that this isn't going to be tolerated by the Court, because if we don't get the lesson through, we are going to be back in this courtroom or some other courtroom the rest of our lives."³⁰

That one of his clients had reported being abused was not the law guardian's priority; it was the mother's having reported this, and having brought a medical witness to support the charge, that he insisted could not "be tolerated by the Court." The judge promptly granted the law guardian's request and ordered the boys into foster care. The law guardian was not finished, however. As it turned out, his real goal was to place the boys with the man one of them accused of abusing them.

Just before a court hearing held about a month after the boys were removed from their mother's home, the law guardian informed the mother's lawyer, for the first time, that the foster parents (who had been specifically picked by the father) were going on vacation and the boys needed a different place to live as a result. At the hearing, the law guardian

made a surprise recommendation that the boys be transferred *into their father's custody*.³¹ After the family court judge complied with his wishes, the law guardian even opposed allowing the mother to be with her children during the day, while the father worked.³²

The law guardian defended the father even as more evidence of abuse continued to surface. Over two years after the boys were placed with their father—on the law guardian's recommendation—a clinical psychologist who interviewed the boys concluded that “these boys were sexually abused by their father . . . in [the younger boy's] case, particularly, the abuse was ongoing.”³³ Once again, the law guardian's reaction to the news was not an expression of concern for his young clients; rather, he set out anew to punish the mother—this time, for bringing the children to a psychologist.³⁴

In a Colorado case, the mother had observed several troubling symptoms in her young daughter, including persistent vaginal discharges, masturbatory behavior, and nightmares. She also appeared “very clingy.”³⁵ The child disclosed to doctors, social workers, psychologists, and even her teachers that her father fondled her genitals and “it hurts.”³⁶

Two separate medical exams, including a colposcopic examination of the girl's genitals (using a special kind of microscope to see into the vagina), found details consistent with sexual abuse trauma. The first exam showed that the child's external genitalia revealed “a crusty yellowish discharge in the perivulvar region” and an “approximately 1 mm. vertical laceration on the posterior fourchette”; it found the child to be “erythematous [reddened] and tender to touch over both vulva.”³⁷ The second exam found the girl had “a generous vaginal opening with an abraded area from 3 to 5 o'clock,” and concluded, “[I]t is worrisome that this child's genital examination has undergone marked changes in one year.”³⁸

The mother was understandably worried about her daughter's safety. But the law guardian appointed by a family court judge had her own agenda. The law guardian chose mental health experts (approved by the

court) who diagnosed the mother with a “hysterical personality disorder.” The law guardian then openly supported the father’s demand for sole custody of his daughter.³⁹

In fact, the law guardian was so committed to the father’s case that she did volunteer work on his behalf—a step she herself told the court was “unusual.” First, “on her own time,” she studied the works of Dr. Richard A. Gardner, a highly controversial expert whose theories about Parental Alienation Syndrome (PAS) (which blames the mother who reports sex abuse for “alienating” the child from the father) have been widely discredited by his peers. (Gardner’s theories are discussed in more detail in Chapter 7.) Not content with reading Gardner’s work, she then paid \$300 of her own money for a long-distance consultation with Gardner, whose New Jersey office was thousands of miles away from the Colorado court.

The law guardian’s use of Gardner’s dubious theories was particularly questionable in this case for two reasons: no expert witness had placed the theory of Parental Alienation Syndrome before the court; and the theory assumes the “brainwashing” of children by mothers, while the child in question was probably too young to have the cognitive skills on which “brainwashing” depends.

Yet the law guardian, after going to such lengths to place her young client in the custody of a man credibly accused of abusing her—and to find a way to duck the physical evidence that tended to support the charge—actually asked the court to reimburse her for the money she had spent in contacting Dr. Gardner out of court!⁴⁰

It is no wonder that in conversations between this mother and one of us, over a period of several years, the mother repeatedly blamed the law guardian, even more than the family court judge, for destroying her family life.

A case involving allegations of child abuse that reached the Kentucky Court of Appeals provides another example of unaccountable behavior

on the part of a law guardian—behavior condoned, unfortunately, by two of the three appellate judges who heard the facts. The exception was Judge Michael O. McDonald, who wrote a scathing dissent in which he criticized the family court judge, and his colleagues on the appellate panel, for depriving a mother of custody of her son because she had made sexual abuse allegations against the father.

And Judge McDonald had particularly sharp words for the boy's guardian ad litem, whose appointment he attributed at least partly to judicial cronyism, noting that the law guardian had been "a campaign contributor" of the judge who appointed him and had a "professional relationship" with the father's "good friend and the godfather of the child."⁴¹

The sex abuse allegations against the father, Judge McDonald wrote, deserved serious attention from the child's lawyer (and the court): the boy's "treating psychiatrist . . . first raised the possibility of sexual abuse . . . due to symptoms [the child] was experiencing"; then, a "forensic pediatrician" examined "the child's anus and [found] significant scarring [and] concluded the child had been sexually abused."⁴² Unaccountably, wrote McDonald, "the court *upon the guardian ad litem's ex parte urgings*,⁴³ ordered that the child be released from Ten Broeck Hospital, where he had been placed by his treating physician [for problems related to the sexual abuse], and further ordered that the child's physician be restrained from having any contact with the child."⁴⁴

The guardian ad litem clearly took his cue from the family court judge, who had called the mother on the record "an extremely manipulative, calculating, and vindictive individual."⁴⁵ But the judge's attitude was no excuse for the guardian ad litem's cavalier representation of his five-year-old client in the face of serious abuse allegations, in Judge McDonald's view:

began advocating for a position on behalf of the child prior to having any opportunity to review the record or discuss the case with the experts involved. This is evident from comparing the

date of his court appearance to those on his itemized bill that he had personal knowledge of the case and was lined up with the appellee [father] from the time of his appointment should have been apparent to the trial court. That the trial court allowed [the guardian ad litem] to needlessly berate and demand the appellant [mother] in his questioning of her, particularly over the issue of his fees, a collateral issue, constituted a shocking display of favoritism by the trial court.⁴⁶ (The guardian ad litem)

McDonald later told the *Lexington Herald-Leader* “that the handling of a controversial Hardin County custody case made him ‘sick’ and helped motivate him to retire.”⁴⁷ He also criticized the Kentucky Court of Appeals’ decision not to publish the case in its law journal,⁴⁸ voicing the suspicion that the court did not want his dissent to appear in public “because he ‘desecrated the temple’ by criticizing the trial court judge for being biased and ignoring evidence of a child’s sexual abuse.” He added, “I was taken aback by the way the case was dealt with. . . In my opinion it was an impact case and it very much needed to stand for something.”⁴⁹ Unfortunately, as he himself sadly noted in his dissent, the case was certain to stand for something even without being published—though without his published dissent, it could not stand for the truth:

I am uncomfortable with the majority’s closing thoughts [Judge McDonald wrote]. That the “system” cannot “require certainty” does not excuse the manner in which this case was allowed to proceed. In my opinion we have not only failed the appellant and the child, *but every other custodial parent who may not be able to convince the trial court that his or her child is the victim of abuse.*⁵⁰

Thus, this tragically bungled case, like so many others in family courts, continues to have “explicative meaning”—that is, it affects how cases like it are likely to be handled in the future. So far, the lawlessness of the Kentucky law guardian remains unreproached by the justice

system and largely unknown to the legal profession—even though it was recognized for what it was by one appellate judge who preferred retirement to family court madness.

LAW GUARDIANS—ACCOUNTABLE TO WHOM?

Law guardian misconduct is particularly damaging to protective mothers because, no matter how law guardians misbehave, it is next to impossible to trigger disciplinary proceedings against them. Although, in theory, all lawyers—including those appointed to represent minor children—are subject to the oversight of statewide supervisory agencies, many protective mothers have found that law guardians are exceptions to the rule. They are virtually unaccountable for their actions to disciplinary committees, to concerned parents, and even to their own clients.

Such was the experience of a Long Island, New York, protective mother who tried to lodge one of the most serious complaints possible against a law guardian: that he had lied to a court about critical evidence that his clients (her sons) had been sexually abused.

In November 1993, the law guardian appeared before a New York appellate court to oppose the request of the mother's counsel for a stay of a twenty-day jail sentence a family court judge had imposed on the mother for "contempt of court." The mother's offense was that she had failed to send the boys on a visit with their father. Her lawyer told the panel of appellate judges that her client had been justified in barring the visit due to her fears that the father had sexually abused them. Moreover, she said, those fears had been partly substantiated by a medical report made at a hospital where the mother had taken the boys for treatment, in which doctors at the hospital had found "possible sexual abuse" in the older child (age seven) and an "enlarged (purple) vessel" and a "large rectum for age" in the four-year-old.

According to the mother, the law guardian then rose and told the judges that “he had personally checked with the doctors” at the hospital and was told by the medical staff “there was no evidence of sexual abuse.”⁵¹ Relying on the law guardian’s representations, the appellate court denied the mother’s request for a stay of her jail sentence.

The mother reacted by filing an official complaint with New York State’s Grievance Committee for lawyer misconduct, accusing the law guardian of having violated his professional responsibilities by misleading the appellate court. Astonishingly, however, the committee responded that law guardians, although members of the bar like other lawyers, are solely “under the control of the court which appoints them.” That is, only if the judge who appointed the law guardian finds “that the law guardian engaged in misconduct” can the grievance committee take any action. Otherwise, “this Committee cannot intervene or otherwise substitute its judgment for the Court.”⁵²

This meant that the mother would have to complain about the law guardian to the judge—that same judge who had appointed the law guardian, who the mother says was related to him by marriage, and who had communicated privately with the law guardian during her case. Only to him could she complain about the conduct of a lawyer who had allegedly boasted to the mother, “I bicycle ride with Don [the judge] several times a week.”⁵³

Not surprisingly, the mother chose not to press her complaint to the judge. She ended up losing custody and all visitation rights with the two small boys.

Giving the family court judges who appoint the law guardians, in the first place, the sole authority to review their conduct actually feeds the system of family court madness, as the collaborative achievement of judges and law guardians supports the bizarre status quo. That essentially precludes any possibility of redress. Yet this is exactly what the system appears to do.

And the situation is no more promising to the children themselves if, upon reaching majority, they seek redress for wrongs allegedly committed by their court-appointed lawyers.

Alanna Krause, an eighteen-year-old college honor student, may be the first such child actually to file a lawsuit against her former law guardian for ignoring her abuse by a parent. Ms. Krause had accused her father of abusing her and had nevertheless been forced by a Marin County, California, judge—with her law guardian's approval—into her father's custody. Years later, her father pleaded "no contest" to criminal child abuse charges filed in another county.

Once the facts of her abuse had finally been admitted, Ms. Krause decided to take legal action. Her 2002 lawsuit alleged that her law guardian had conspired with her father to commit fraud, to interfere with the presentation of evidence, and to make false statements to the family court. She also complained that the law guardian had billed nearly \$17,000 for her "services" and had taken some of that money, illegally, from her mother's family support.

Remarkably, a federal court dismissed the lawsuit against the law guardian without even considering Ms. Krause's evidence against her. The reason? The court claimed that the law guardian was entitled to "quasi-judicial immunity," a doctrine that protects court officials from civil liability when they carry out a judge's orders or perform functions equivalent to those of a judge. The court ruled: "Under governing California law . . . therapists, guardians and court-appointed attorneys, are accorded quasi-judicial immunity . . . attorneys for children in child abuse actions are granted immunity from damages claims."⁵⁴ The court apparently did not see the irony of placing an attorney who had allegedly defrauded a court, improperly enriched herself, and helped to make her own client suffer abuse in the same class with a "therapist" in the eyes of the judicial system.⁵⁵

For children who have been the victims of grossly negligent or even malicious law guardians, the reasoning of courts like the one in which

Ms. Krause filed suit means that if the law guardian inexcusably, or even deliberately, puts a child they are supposed to represent through a life of hell, the child cannot sue for malpractice. In other words, the law guardian is lawsuit-proof—unlike any other attorney representing any other sort of client in a court of law.

This leaves children who have been victims of negligent or unscrupulous law guardians helpless to obtain justice, even when the law allows them to speak for themselves. As Ms. Krause stated in a column she wrote two years before filing her lawsuit:

We children have no choice and no recourse when those adults [who represent us] have their own agendas. . . My father . . . is an abuser, and living with him was a mental and physical hell. . . Yet . . . [t]he lawyer appointed to represent my “best interests” . . . spent her allotted time with me parroting my father’s words, attempting to convince me that I really wanted to live with him. She ignored my reports of abuse. .

. . . I couldn’t replace my lawyer with one who would speak for me nor could I speak for myself in court. I couldn’t cross-examine the court evaluators or therapists and their claims were thus untouchable. I felt like I was witnessing the proceedings from the wrong side of soundproof glass.⁵⁶

THE VIEW FROM HIGHER COURTS

Family court cases rarely receive close scrutiny from higher courts, which usually reason that a judge who has personally heard testimony and observed the parties and witnesses must know what they are doing when they make decisions concerning matters such as child abuse or custody. (In nearly all family courts, unlike criminal courts, the parent accused of abuse—or accused of having made an unfounded

accusation—has no right to a jury, so that the case is decided on all issues solely by the judge.)

It is noteworthy that when appellate courts do closely analyze a family court case—usually because the case presents some novel feature—they sometimes express surprise at actions taken by law guardians that went completely unnoticed, or were actually encouraged, by the family court judge. This helps to underscore how much law guardian lawlessness depends on the unique culture of the family court system.

Take the famous “Baby M” case, which brought national attention to the issue of surrogate motherhood. A New Jersey mother (Mary Beth Whitehead) “contracted” to produce a baby for an infertile couple but then changed her mind after the baby was born. She and her husband sought permanent custody of the child while the infertile couple likewise sought custody (and ultimately obtained it).

The New Jersey Supreme Court, although concluding that the child’s best interests would be served by placement with the infertile couple, reacted with some astonishment to the conduct of the law guardian (and the family court judge) in that case, writing that Mrs. Whitehead had been unfairly maligned by both of them. The court was particularly puzzled by the law guardian’s harsh request that Mrs. Whitehead not even be granted visits with the child she had given birth to “at least until Baby M reaches maturity.”⁵⁷ The child was less than two years old at the time and would have had to wait another sixteen years before seeing her biological mother if the law guardian’s recommendations had been followed. As previously noted, a biological parent’s visits are seldom barred unless they are actually dangerous to the child—yet here was a law guardian seeking a complete ban on visits for sixteen years, with no evidence that Mrs. Whitehead posed any sort of threat. What was commonplace in family court was surprising, understandably, to the justices of a higher court unaccustomed to the vagaries of protective mother cases.

Unfortunately, few protective mothers—with cases involving only sexual abuse, not a novel public question like surrogacy—ever obtain a hearing before judges outside the family court system.

LAWLESS LAW GUARDIANS AND THE “DISPLACED MOTHER SYNDROME”

For protective mothers, the offense of law guardian misconduct is compounded by the law guardian’s usurpation of the mother’s role. Whether or not family courts actually intend it, the fact is that the appointment of a law guardian—particularly one who is hostile to the mother—means that the law guardian begins to function in many respects as if the guardian, not the mother, had parental rights, forcing the mother aside. Certainly, this is how many protective mothers have experienced the astonishing intrusions carried out by law guardians, with the complete approval of a court system that is supposed to protect families, not rupture them. We have dubbed this experience the “Displaced Mother Syndrome.”

Displaced Mother Syndrome has very tangible causes. In some cases, law guardians have instructed schools not to communicate with their clients’ mothers, not even to give the mothers report cards. Other law guardians have ordered mothers to keep away from school plays and commencement exercises. In one case (which will be discussed in more detail), when a protective mother whose visits had been terminated learned that her daughter’s case was before a “Fatality Review Panel,” CPS officials refused even to tell her whether the child was alive or dead, because the law guardian had instructed them that only he was to be informed of developments involving the child.

After experiences like these, displaced mothers confront feelings of grief and loss as their caretaking role is taken away from them. In place of the busy days of getting the children off to school (or day care), plan-

ning dinner menus, and reading nighttime stories, they face an empty house and a vacuum of knowledge. Many of them have formed support groups.

Many of the displaced mothers we spoke with said they no longer visited parks or other places where many children are found. They avoided “normal” mothers tending to their children. Many stopped attending church services and community affairs. Other mothers said they felt “unfeminine”—as if they were no longer women, since they were no longer recognized as mothers. One mother told one of us she could not even get herself to her annual ob-gyn exams, stating she was “so far removed from feeling like a woman.” She described herself as “legally sterilized” by the family court.

Maternal displacement, however, can be more than just a set of psychosocial reactive symptoms. The displacement may have drastic legal and administrative consequences.

For instance, the law guardian in one high-profile New York case directed the medical staff at a hospital, where an allegedly abused child was being treated for life-threatening anorexia nervosa (which she acquired while living in her father’s custody), not to talk to the mother, claiming that she was “mentally ill,” although the law guardian’s own expert witness had reported otherwise. As a result, the doctors refused to give any information to this anguished mother about her daughter’s condition—even though, as later testimony showed, the doctors were not even certain the child would live.

Through some bizarre administrative twist, the child’s case was later placed before the New York City Child Fatality Review Panel. For days, her mother begged the agency officials to tell her if her child had died. She was repeatedly told that information could be given only to the law guardian, as it was “confidential” even from the mother herself. The mother’s attorney made several calls to the law guardian to find out if the child was alive—all her calls went unanswered. Although this was an extreme case, many protective mothers have had great difficulty even

getting their children's pediatricians to talk to them once a law guardian intervened in their families.

The role of "displaced mother" is the "situated achievement" of protective mothers—continually interpreted, negotiated, shaped—who have been driven out of the lives of their children by law guardians. We elaborate on two characteristic cases.

WILL THIS HOLIDAY BE THE LAST WITH MY CHILDREN?

First, we consider the previously mentioned case of the Idaho mother who confronted a law guardian's insistence that the family court punish the mother for believing her son's reports of abuse by the father. As previously shown, this mother suddenly lost two of her minor children into foster care because she made a report of sexual abuse with the support of a pediatrician. For a time, the children were returned to her home—after she was forced to agree not to charge her ex-husband with abuse—but under the pressure of his constant, aggressive litigation, she watched her custodial rights gradually erode. Finally, the boys were placed in their father's exclusive custody, and the mother was allowed visits only when the father agreed to permit them.

The contorted legal proceedings proved a perfect breeding ground for Displaced Mother Syndrome. The mother saw her viability as a caregiver shaken to its core. First, the law guardian urged the court to punish her for reporting her son's disclosure of abuse—thus compromising her right to protect her child. Then, when the children were forced into foster care in the summer (on the law guardian's recommendation), it was the law guardian—not the mother or her lawyer—who knew in advance that the children's foster parents would not be able to keep the children throughout the late summer and fall. And it was the law guardian who recommended, out of the blue, that as a result the children should be placed with their father—even though one of the boys reported having

been abused by him. Years later, the law guardian made no objection when the father sought confidential records of his alleged victim's visit with a psychologist, despite the obvious violation of the privacy of the child—the law guardian's own client. Finally, with the law guardian's approval, the mother lost custody altogether.

Throughout all this, she practically accomplished her role as a “displaced” mother, particularly on family holidays. In the days before each Easter and Thanksgiving, she told her friends she feared that this would be the last holiday she would have with her children. She took dozens of snapshots of her children sitting around the dining room table—pictures she expected, even while she was taking them, to be her only contact with family holidays in the future. Her motherhood had come to be situatedly defined as a tenuous, threatened existence that could be preserved only in a photo album. Meanwhile, she feared that her family would be “torn apart by a knock at the door from a process server.”⁵⁸

Her ex-husband, perhaps sensing her fears, had her served with a custody-transfer petition on the day before Thanksgiving 1998. That wave of litigation ended with the boys being transferred to their father's custody and the mother threatened with a jail sentence if she did not hand over one of her son's confidential psychological records to the man he had accused of abusing him. In the end, the mother was proved right. Her family life was torn apart, with the cooperation of a lawless law guardian. And the final assault was timed to coincide with a family holiday.

MOTHER COMMITS “IRRATIONAL” ACT

The most tragic reaction to “Displaced Mother Syndrome” occurred in a Rockland County, New York, case in which a protective mother—an attorney—killed her child, and herself, when it appeared a family court would transfer her four-year-old daughter to the custody of her ex-husband, who had been accused of sexually abusing her.

Much of the mother’s anguish arose from the conduct of the girl’s law guardian, who treated the mother with unwavering hostility. *New York Newsday* columnist Carole Agus, writing about the case after the double fatality, complained that the law guardian was “permitted [by the court] to function as the husband’s attorney, rather than the child’s.” For example, when the father was serving a jail sentence for failure to pay child support (a penalty imposed by a judge in a different court), the law guardian petitioned the family court judge to arrange visitation for the father at the jail.⁵⁹ In fact, the law guardian’s advocacy for the father and opposition to the mother—despite solid evidence of child abuse—went so far that the day after the mother filed an abuse complaint against the father with the police after a weekend visit, the law guardian actually demanded from the family court (and got) an order removing the child into foster care on the grounds that she had been unable to reach the mother by telephone!⁶⁰

That order was stricken by an appeals court when the mother took prompt legal action. But the experience terrified her. Amy Neustein, who had followed the case for almost a year, spoke to the mother just a few hours before she killed herself and her child. What the mother disclosed in that conversation shows how deeply she had been affected by the law guardian’s conduct.⁶¹

She said she had just come from court and suffered “a very serious defeat.” That day, Rockland County Family Court judge William Warren had ruled against the CPS lawyer, who had maintained that the father was guilty of sexually abusing his daughter. As a result, Judge Warren

ordered a resumption of unsupervised weekend visitation between the four-year-old girl and her father. These visits were to begin in just two days.

Throughout the trial, the law guardian had strenuously supported the father—despite the position of CPS and a court-appointed social worker’s testimony that “[the child]’s presentation is entirely consistent with that of a sexually abused child,”⁶² which supported her report to the court that the “sexual interaction [between the father and the child] included vaginal fondling, vaginal penetration, and at least attempted anal penetration.”⁶³

Now, the mother said, the law guardian—on hearing the judge reject the claims of sexual abuse—had confronted her in the courtroom and coldly warned her that she was about to face “the custody battle of her life.” This threat, coming from an attorney who had already bent the law out of shape to have this mother’s daughter removed from her home, convinced the mother that she could not win. She was certain, she said, that her daughter would be lost to her forever if the litigation continued. A few hours later, she and her daughter were both dead.

Judge Warren told the *National Law Journal*, “I cannot explain irrational acts.”⁶⁴ But shocking as the mother’s actions may have been, they were not without historical precedent. Henrietta Buckmaster, in a study of the “Underground Railroad” for escaping American slaves, reports that “resistance to slavery took many forms other than escape . . . [including] . . . killings by mothers of their children when they heard they were to be sold apart [and] in repeated suicides.”⁶⁵ Writings that have survived from medieval pogroms similarly show that Jewish parents sometimes killed their children—and then themselves—rather than allow the children to be forcibly converted to Christianity (which to them would have meant a radical rupture of family and social bonds as well as a religious violation). In other words, parents who fear the complete displacement of their parenting roles may sometimes, in despair, behave just as this protective mother did.

Judge Warren—and the father’s supporters—naturally stressed that child murder cannot be justified under any circumstances. But what about the visceral threats that had driven this sensitive woman to such an extreme? Were *they* justified? Do we ignore the evils of slavery or pogroms because the desperate victims of both sometimes took their children’s lives—seeking a gruesome escape from the intolerable?

The mother’s suicide note (addressed to two adult children from a prior marriage) clearly suggests her internal struggle and sense of hopelessness:

Dear Jason and Marisa:

Please forgive me for any pain I have caused or will cause you in the future. You are my children and I love you more than myself. Abigail is also my child. I cannot knowingly allow her to be sexually abused. I have no choice. I hope you can understand. Be kind to each other. I’m sorry I had to leave you alone.

*Love Forever, Mom*⁶⁶

Judge Warren’s answer to the reporter—that no explanation would be valuable in light of the mother’s “irrational” act—is clearly not adequate in the face of such anguish. In fact, it is actually not too difficult to reconstruct the intolerable dilemma that tore this mother apart. As she steadily lost the power to protect her young daughter from alleged sexual abuse, and faced “the custody battle of her life,” she knew all too well that she risked being utterly “displaced”—being a mother who would live to see herself driven out of the life of her child by court rulings.

Thus, in a last-ditch attempt to (situatedly) fulfill the role of mother—rather than standing back and watching the child drift away into the hands of an accused molester—this mother took the radical, final step by which she removed the family court, and the tormenting law guardian, from her child’s life.

ADDENDUM—LAWLESS LAW GUARDIANS BECOME “RECKLESS” LAW GUARDIANS—IGNORING THE FATHER’S CRIMINAL HISTORY

Father’s Criminal History Spanning Over Ten Years Disregarded
by Law Guardian

In the intervening years since the first publication of *From Madness to Mutiny* (2005) until the present, criminal background checks have become much easier, where much of the needed information is already in digital form. Diagnostic information and police investigative reports are likewise now part of a digital database. As such, pertinent documents, including doctors’ handwritten notes and markings on anatomical diagrams, are readily made available to the family courts, as well as to the child’s law guardian.

Although not all criminal records indicate high risk to children, certainly crimes involving substance abuse, harm to children or adults, and other forms of abuse and sustained criminal activity must be considered when making decisions regarding child safety. But typically, the law guardians ignore evidence that clearly places helpless children at risk. That is, persuaded by the bias against protective mothers, the child’s “representative” or “proxy” will routinely send the child into the custody of the dangerous parent, notwithstanding compelling incriminating evidence against the father.

What follows is a description of a protective mother from Contra Costa County, California, who lost custody of her two preschool-aged children to the father as soon as the hospital emergency room physician called in a complaint of sexual abuse and referred the case to a specialist, who urged that the children be protected from the father. According to the mother, the law guardian withheld this evidence from the court,

and when sued in federal court by the mother in a civil rights action that she brought against the law guardian and the sheriff (the latter of whom had been commissioned by child protective services to perform an investigation of abuse), the laws of qualified immunity rendered the mothers charges moot.⁶⁷

This Contra Costa County mother had brought to the attention of the minor's counsel (in California law guardians are traditionally referred to as "minor's counsel") that the father had a criminal background that had a direct relevance to the safety and welfare of her two preschool-aged girls. The father's criminal record spanned more than a ten-year period. It began with a conviction for criminal endangerment of the welfare of his child from his first marriage. This conviction happened one year after he started a family with his second wife—the protective mother at the heart of a hostile family court proceeding. In fact, he had been ordered, under the probation agreement, to undergo fifty-two weeks (an entire year) of parenting classes because of this misdemeanor conviction.⁶⁸ This made no difference to minor's counsel who supported a change of custody of two very young girls (age two and four) to the father after medical experts, according to the mother, confirmed sexual abuse trauma and urged protection of the child.

The father's criminal activities would continue over the years. In 2018, the Deputy District Attorney would bring nine charges against the father in the Superior Court of California, County of Contra Costa, which included a charge of "resist, obstruct, delay of peace officer or EMT." The complaint read:

On or about March 5, 2018, in the County of Contra Costa, State of California, the crime of Resist, Obstruct, Delay of Peace Officer or EMT in violation of PC148 (a) (1), a Misdemeanor was committed in that [defendant] did willfully and unlawfully resist, delay and obstruct DA inspector [name withheld] who was

then and there a peace officer attempting and discharging the duty of his/her office of employment.⁶⁹

A criminal charge of challenging a peace officer suggests impulse control problems at the very minimum. This charge, when coupled with other criminal charges occurring over such a long tenure, should have raised significant red flags for this court. The sex abuse evidence didn't raise red flags either for both minor's counsel and the court. What follows is documented in the record of this case.

Mother's Meticulous Efforts to Document Recurring Sex Abuse are Upended by Minor's Council

The mother brought her four-year-old daughter to the Marin General Hospital (Novato Community Hospital) emergency department after the child, upon coming home from an overnight visit with the father, began to complain loudly that her father had put his finger in her vagina. The emergency room doctor noted the following in his report when filling out the field for the physical exam of the genitourinary system:

External genitalia, there was clearly erythema [redness] at the introitus, and there was a small mucosal tear just on the left inner aspect of the vaginal wall.⁷⁰

In the report, for the field labeled "Diagnostic Impression," the emergency department doctor wrote "Suspected sexual assault."⁷¹ The doctor then stated in his report "The Novato Police Department are called." His concern for the young four-year-old girl was evident. His words could not have been clearer: "I have advised the mother strongly that I would not allow the child to go back under the father's care at all."⁷² The mother followed up with the pediatrician who wrote a strong letter in the hope that the law guardian would protect the child. In the letter, the pediatrician not only referred to the finding of the emergency

room physician, but he added his own findings from two other office visits where the child had been seen. On one of those visits he found on physical exam “slight flushing of the labia,” and on another, he reported that the child complained her father had “put two [of] his fingers in [her] vaginal area,” which caused her to have “burning in her vaginal area.”⁷³

The mother had been taking her four-year-old child to a therapist because of complaints made by the child that the father would strike them during their overnight visitation at his home. The therapist, as a mandated reporter, had relayed these concerns in explicit detail to CPS and to the sheriff who was assigned by CPS to investigate the case. The therapist then wrote a summary letter to the mother recounting what she had relayed to the “authorities” in charge of this child’s welfare. She indicated that the child had stated she was “hit” by her father and that “he often uses foul language directed at her, such as ‘asshole.’”⁷⁴

The CPS agency, in concert with the minor’s counsel, arranged for the child to be seen by an eminent pediatrician specializing in child abuse. The state paid for this extensive evaluation, which included the use of an ultraviolet light test (known as a Wood’s lamp) to detect bruises. In the expert’s four-page letter to the head detective at the Contra Costa County Sheriff’s Office, he made findings that raised concerns about child abuse. His report noted “several Wood’s lamp [ultraviolet] positive areas located on [the child’s] posterior buttocks and posterior thighs as well as a finding of some redness in her vaginal introitus.”⁷⁵ He stated, “bruises on the buttocks [are] most consistent with inflicted injury.”⁷⁶

The expert elaborated further: “The most likely thing that happened was that these inflicted injuries and the rectangular configuration on the right buttock brings up the possibility of an object used in striking this child.”⁷⁷ He concluded that any further visits with the father “should be supervised to ensure that the child is not at risk for subsequent physical injury or sexual contact.”⁷⁸ The minor’s counsel recommended to the court that the mother lose custody of her four-year-old daughter, as well

as her younger daughter who was only two years of age, to the father. This concerning report of child abuse prepared by the expert chosen by the local CPS did not bear any weight in the eyes of the minor's counsel. The mother was given highly restricted supervised visitation of just one hour a week with her young preschool children. She never regained custody.

In the years that followed, the children showed disturbances. Sadly, the mother had nowhere to turn. The minor's law guardian, virtually immune from suit, was accountable to no one. Even though public monies were appropriated to the law guardian who failed to protect the children she was never held accountable, nor did the till run dry, as there is little to no oversight for law guardians. Sadly, today they remain both lawless and reckless.